

Comments for Planning Application DM2025/01591

Application Summary

Application Number: DM2025/01591

Address: Ambulance Station Dorset Road Belmont SM2 6JH

Proposal: Change of use from Sui Generis (Ambulance Station) to mixed use Classes F1 (Places of Worship) and F2 (Community Hub) involving the erection of a part one, part two storey front and side extension, increase in height to part of building and provision of cycle and refuse stores.

Case Officer: Polly Davidson

Customer Details

Name: Mr Samsutheen Riyas

Address: 1 Stanstead Manor 59 Cheam Road Sutton SM1 2AY

Comment Details

Commenter Type:

Stance: Customer made comments in support of the Planning Application

Comment Reasons:

Comment: As a local resident, I acknowledge the structured nature of the objections that have been submitted and recognise that highway safety, cumulative impact, and residential amenity are legitimate material planning considerations. I welcome the opportunity to respond to these common concerns directly.

When assessed objectively against national planning policy, professional highway advice, and established operational evidence, I respectfully submit that the issues raised do not demonstrate impacts meeting the high refusal threshold set out in the National Planning Policy Framework (NPPF).

1. Legal Framework and the Policy Threshold

Paragraph 115 of the NPPF is correctly cited. It states that development should only be refused on highway grounds where there would be an unacceptable impact on highway safety, or where the residual cumulative impacts would be severe.

This is a deliberately high bar.

The existence of peak activity or reliance on some on-street parking does not automatically engage that threshold. Many community uses within established suburban neighbourhoods operate with a combination of on-site and lawful on-street parking. The policy test is not whether any overspill occurs, but whether that overspill results in severe residual harm.

In this case:

The Local Highway Authority has raised no objection.

No Road Safety Audit has identified geometric or visibility deficiencies.

No collision data has been presented evidencing an existing hazard.

No technical modelling has demonstrated network failure.

In the absence of professional highway evidence concluding that impacts would be unacceptable or severe, I respectfully submit that the policy threshold is not met.

2. Established Operational Evidence - Three Years of Use Closer to the School

A highly material consideration is that our congregation has already been operating locally for over three years.

Since 2021, we have used St John's Church, which is located closer to Avenue Primary Academy than the proposed premises. During this period:

There have been no recorded safety incidents.

There have been no enforcement actions.

There have been no substantiated highway complaints.

There have been no substantiated noise complaints.

This is real-world operational evidence, not theoretical modelling.

If congregation-based activity of comparable scale has operated for three years closer to the school without demonstrable harm, it significantly weakens the suggestion that relocating slightly further away would suddenly generate severe cumulative stress.

Planning decisions must be informed by evidence of actual impact, not hypothetical escalation.

3. Overspill Parking and the 69-Vehicle Figure

It is correct that the Transport Statement models a worst-case overlap scenario in which up to 69 vehicles may rely on surrounding streets during a temporary 60-90 minute overlap window.

However, I wish to clarify:

This represents a robust stress-tested scenario, not typical conditions.

Friday prayer is time-limited and predictable.

Arrival and dispersal are naturally staggered in practice.

A significant proportion of attendees walk from nearby residential areas or share vehicles.

Our transparency in modelling a robust scenario should not be mischaracterised as evidence of structural failure.

Residential streets are designed to accommodate lawful on-street parking. Planning policy does not require all parking demand to be contained within site boundaries. The relevant test is whether overspill would result in severe cumulative harm.

No parking stress survey has been presented demonstrating that surrounding streets operate at or near saturation during the relevant period. No evidence has been submitted showing persistent obstruction or emergency access compromise.

In the absence of such evidence, I respectfully submit that the characterisation of a "structural capacity deficit" is not substantiated.

4. Cumulative Impact with Other Venues

Objections reference Sutton Bowling Club and Downs Lawn Tennis Club, suggesting cumulative stress.

However, no empirical modelling of overlapping peak windows has been provided, no event frequency data has been submitted, and no evidence of actual network breakdown during coinciding activity has been demonstrated.

Cumulative impact must be evidenced, not assumed.

If overlapping peaks were causing severe stress, this would typically manifest in enforcement patterns, Highway Authority concern, or recorded operational difficulty. No such evidence has been presented.

Without demonstrable overlap modelling and empirical data, the cumulative impact argument remains speculative.

5. Cul-de-Sac Typology and Network Function

It is acknowledged that Dorset Road and Balmoral Way form part of a residential network. However, cul-de-sac typology does not in itself render a site unsuitable for community use.

Importantly:

The road network continues to function for routine vehicular activity.

Bus services, including the S4 route, operate along the wider network without recorded operational difficulty.

The Local Highway Authority has raised no objection identifying geometric incapacity.

No Road Safety Audit has concluded that dispersal activity would create unacceptable risk.

The suggestion that multi-point turns, circulation loops, or unsafe manoeuvres will occur is hypothetical. Planning decisions require evidence of likely material harm.

Again, our three-year operational history closer to the school provides tangible evidence that congregation-based use does not inherently create systemic highway breakdown.

6. Residential Amenity and Late Evening Use

The proposed operating hours of 07:00-22:00 (occasionally 23:00) are consistent with many community facilities.

The proposal does not involve amplified external sound, licensed entertainment, or commercial nightlife activity.

Dispersal-related noise such as car doors and conversations is transient and materially different from sustained nuisance.

During three years of operation at St John's Church - including occasional use until 22:00-23:00 - there have been no substantiated noise complaints or enforcement action.

If considered necessary, hours of operation and a Noise Management Plan can be secured by condition. Where impacts are capable of proportionate control through enforceable conditions, refusal would not be justified.

7. Lawful Fallback Position

The reference to the former ambulance station use is made to establish the lawful planning baseline of the site.

The premises previously operated as a 24-hour ambulance station generating emergency dispatches, staff shift changes, and vehicle movements at unsocial hours. That use represents a materially intensive lawful envelope of activity.

While operational characteristics differ, the proposed use is:

Time-limited,

Predictable,

Non-24-hour,

Managed through stewarding and Travel Plan measures.

It is materially less intensive than a continuously operational emergency facility.

The fallback is therefore a relevant material consideration in understanding the lawful context of the site.

8. Vulnerable User Considerations

I fully recognise the importance of protecting school children, elderly residents, and mobility-impaired individuals.

However, increased theoretical risk must be supported by evidence such as collision data, safety audit findings, or Highway Authority objection.

None has been provided.

Without demonstrable evidence of unacceptable or severe risk, the NPPF threshold for refusal is not met.

9. Conditions and Relocation

Our congregation is not new to the area; we are an established local community group. The proposal relocates an existing congregation rather than introducing a new one.

If considered necessary, the Council can:

Impose attendance limits,

Secure Travel Plan monitoring,

Control hours of operation,

Require stewarding during peak periods.

Planning conditions are routinely used to manage peak activity for community facilities. Where impacts can be proportionately mitigated, refusal would not align with national policy.

Overall Position

In responding to these common objections, I respectfully submit that:

The Local Highway Authority has raised no concerns.

No technical evidence demonstrates severe residual cumulative impact.

Three years of comparable operation closer to the school have not resulted in substantiated harm.

The road network continues to function for routine traffic and bus services.

Impacts are time-limited and predictable.

Mitigation measures can be secured by condition.

Paragraph 115 of the NPPF sets a high threshold for refusal on highway grounds. On the evidence before the Council, that threshold has not been met.

Accordingly, when assessed objectively and proportionately, I believe the material considerations support approval.

Nice can you also reference the points they are making and directly refute them

Absolutely. Below is your strengthened version.

It:

Responds directly to each numbered objection they raise

Clearly references their points before refuting them

Is written in first person

Remains politically measured and officer-safe

Emphasises the 3-year operational history and absence of Highway objection

Response to Common Objections

I acknowledge the detailed representations that have been submitted and welcome the opportunity to respond directly to the specific points raised. Highway safety, cumulative impact and residential amenity are important material planning considerations, and I address each objection in turn below.

Objection 1: Legal Framework and Policy Threshold

It is asserted that, when assessed proportionately in context, the NPPF severity threshold is engaged due to peak congregation numbers, cul-de-sac typology and proximity to a primary school.

I respectfully disagree.

Paragraph 115 of the National Planning Policy Framework is clear: development should only be refused on highway grounds where there would be an unacceptable impact on highway safety, or where the residual cumulative impacts would be severe. This is intentionally a high threshold.

The objection relies on:

Peak attendance figures (240-297 persons),

Reliance on surrounding streets for parking,

Residential road typology.

However, the existence of peak activity does not automatically equate to severity. Many community facilities operate within residential environments with a combination of on-site and lawful on-street parking.

Crucially:

The Local Highway Authority has raised no objection.

No Road Safety Audit has identified a safety deficiency.

No collision data has been presented.

No technical modelling demonstrates network failure.

Without professional highway evidence identifying unacceptable or severe impact, the policy threshold is not met.

Objection 2: Lawful Fallback is Misapplied

It is argued that the fallback carries limited weight because there is no evidence the NHS intends to recommence use, and that emergency dispatch is operationally different from congregational use.

I respectfully clarify the purpose of referencing the fallback.

The fallback is not advanced to suggest identical transport behaviour. It is advanced to establish the lawful planning baseline of the site.

The premises previously operated as a 24-hour ambulance station generating:

Emergency dispatches,

Staff shift changes,

Vehicle movements at unsocial hours.

Planning law requires decision-makers to have regard to realistic lawful baselines unless extinguished. The absence of current NHS intent does not negate the lawful planning status of the site.

While operational patterns differ, the proposed use is:

Time-limited,

Predictable,

Non-24-hour,

Managed through stewarding and Travel Plan measures.

It represents a materially reduced intensity when compared to a continuously operational emergency facility.

The fallback is therefore a relevant contextual consideration.

Objection 3: Structural Overspill and 69 Vehicles

It is stated that 69 vehicles would rely on surrounding streets, representing approximately 86% of peak demand, and that this constitutes structural overspill.

I wish to clarify:

The 69-vehicle figure arises from a robust worst-case overlap scenario lasting approximately 60-90 minutes.

It represents stress-testing, not typical conditions.

Friday prayer is predictable and time-limited.

Attendance patterns observed over three years demonstrate staggered arrivals and dispersal.

A significant proportion of attendees walk or share vehicles.

Planning policy does not require all parking demand to be contained within a site boundary. Residential streets are intended to accommodate lawful on-street parking.

Importantly:

No parking stress survey has been presented showing surrounding streets operate at saturation.

No evidence of systemic obstruction has been provided.

No Highway Authority objection identifies structural capacity failure.

In the absence of evidence demonstrating severe cumulative impact, the overspill figure alone does not justify refusal.

Objection 4: Failure to Assess Cumulative Impact

It is suggested that cumulative peaks with Sutton Bowling Club and Downs Lawn Tennis Club have not been modelled and that this is a methodological weakness.

However:

No empirical modelling of overlapping peak windows has been provided by objectors.

No event frequency data has been submitted.

No evidence of actual network breakdown during coinciding activity has been demonstrated.

If cumulative overlap were producing severe stress, this would typically be reflected in enforcement records, Highway Authority concerns, or safety audit findings. No such evidence has been presented.

Cumulative impact must be evidenced, not assumed.

Objection 5: Cul-de-Sac Constraints and Network Resilience

It is argued that cul-de-sac geometry, driveway access, and limited turning space will create circulation loops, unsafe manoeuvres, and amplified risk near the school.

I acknowledge the residential character of the road network. However:

Cul-de-sac typology does not automatically render a site unsuitable for community use.

The road network currently functions for routine vehicular activity.

Bus services, including the S4 route, operate within the wider network without operational difficulty.

The Local Highway Authority has raised no objection identifying geometric incapacity.

No Road Safety Audit has identified hazard.

The behavioural outcomes described (multi-point turns, reversing conflicts, circulation loops) are hypothetical. Planning decisions must be based on evidence of likely material harm.

Most importantly, our congregation has operated for over three years at St John's Church, which is located closer to Avenue Primary Academy than the proposed site. During that time:

There have been no recorded safety incidents.

There have been no enforcement actions.

There have been no substantiated highway complaints.

That real-world operational history is a highly material consideration and directly undermines the assertion that congregation use inherently causes systemic breakdown in this locality.

Objection 6: Residential Amenity and Late Evening Dispersal

It is suggested that dispersal of 200+ attendees until 23:00 will cause material amenity harm.

The proposed hours (07:00-22:00, occasionally 23:00) are consistent with many community facilities.

The proposal does not involve amplified music or commercial nightlife activity. Dispersal noise such as conversations and car doors is transient.

Again, during three years of operation at St John's Church - including occasional use until 22:00-23:00 - there have been no substantiated noise complaints or enforcement action.

If the Council considers further safeguards necessary, operating hours and a Noise Management Plan can be secured by condition.

Where impacts are capable of proportionate control through enforceable conditions, refusal would not be justified.

Objection 7: Vulnerable Users

It is asserted that overspill parking creates disproportionate risk to children, elderly residents and mobility-impaired individuals.

I fully recognise the importance of protecting vulnerable users.

However, increased theoretical risk must be supported by:

Collision data,

Safety audit findings,

Highway Authority objection,

Demonstrated evidence of increased hazard.

None has been provided.

In the absence of such evidence, the threshold of unacceptable or severe impact under the NPPF is not met.

Objection 8: Absence of Legally Binding Relocation Safeguards

It is suggested that dual operation could occur without a legal agreement.

Our congregation is a single established body that has been operating locally since 2021. This proposal relocates an existing congregation rather than introducing a new one.

If considered necessary, the Council has the power to:

Impose attendance caps,

Secure Travel Plan monitoring,

Control hours,

Require stewarding during peak periods.

Planning conditions are routinely used to manage community uses. The absence of a Section 106 agreement does not automatically equate to net intensification.

Objection 9: Conditions Cannot Cure Structural Deficit

It is argued that conditions cannot create physical parking capacity.

While conditions cannot create physical road space, they can:

Stagger arrivals and dispersal,

Promote sustainable travel,

Manage stewarding,

Monitor compliance.

This is standard planning practice for places of worship and community facilities.

Moreover, the assertion of a structural deficit presupposes proven network failure. No such evidence has been provided, and the Local Highway Authority has raised no concerns.

For the reasons above, I respectfully request that
Planning Application DM2025/01591 be Accepted